

**Form FD12B**

20

No.

Supreme Court of Nova Scotia  
(Family Division)

Between: [copy standard heading]

[name]

Petitioner

and

[name]

Respondent

**Affidavit Supporting an Uncontested Divorce (Petition)**

I [make oath/affirm] and give evidence as follows:

- 1 I am [name] the petitioner in this proceeding.
- 2 I filed an uncontested motion for divorce on [date], 20 , and this affidavit provides the required supporting evidence.
- 3 I have personal knowledge of the evidence [sworn to/affirmed] in this affidavit except where otherwise stated to be based on information or belief.
- 4 I state, in this affidavit, the source of any information that is not based on my own personal knowledge, and I state my belief of the source.

**Petition**

- 5 I confirm that all the information contained in the petition for divorce continues to remain true and accurate to the best of my knowledge [except for the following corrections or changes: provide details] .

**Financial statements**

- 6 The financial statements filed remain true and accurate, to the best of my knowledge [except for the following corrections or changes: provide details] .

## Reconciliation

7 There is no possibility of reconciliation between the respondent and me.

## Ground

8 I am seeking a divorce from the respondent on the ground that our marriage has permanently broken down and, in particular, that the respondent and I were living separate and apart since [date] . We were living separate and apart at the commencement of the proceeding and have lived separate and apart for at least one year immediately preceding the determination of the divorce proceeding.

[or]

8 I am seeking a divorce from the respondent on the ground that our marriage has permanently broken down and, in particular, that the respondent has treated me with *[mental/physical]* cruelty of such a kind as to render intolerable our continued cohabitation. [Provide facts in support here.] There was no condonation or connivance by me of the conduct which is the basis of that cruelty.

[or]

8 I am seeking a divorce from the respondent on the ground that our marriage has permanently broken down and, in particular, that the respondent has committed adultery by having sexual intercourse with another person during the marriage. [Provide facts in support here, and refer to the affidavit, or certified transcript of the examination for discovery, of the admission of the respondent's adultery.] There was no condonation or connivance by me of the adultery.

## Collusion

9 There was no collusion in relation to these proceedings.

## Written agreement or previous court order

10 Attached is a true copy of [the written agreement between the respondent and me dated , 20 ,/a true copy of the court order dated , 20 ,/describe combination of written agreement and court order addressing corollary relief] in settlement of all corollary matters.

## Children

11 There are no children of the marriage as described in the *Divorce Act*.  
[or]

[If these paragraphs are used, renumber them and the paragraphs that follow in sequence.]

- 11a The full names and birth dates of the children are: [provide details] .
- 11b [Set out in general terms the decision-making responsibility, parenting time and parenting arrangements in the agreement.]
- 11c [Set out in general terms the child support provisions of the agreement, as well as the present employment and annual incomes of the parties. If child support is not to be paid or if the amount differs significantly from the *Guidelines*, explain why.]
- 11d [Refer to any benefits being retained or provided for the children, including medical, dental and drug plan coverage, life insurance, etc.]
- 11e [Explain the basis upon which the petitioner concludes that the agreement makes reasonable arrangements for the support of the children.]
- 11f [Set out the details of any court order or request for a court order for contact, interaction or parenting arrangements with the child/children of the marriage by a person who is not a party to this proceeding, including party names and court file number.]

### **Spousal Support**

12 No spousal support will be paid by either party to the other.

[or]

12 [Set out in general terms the spousal support provisions of the agreement. If present employment and annual incomes are not provided above under "Children", provide those particulars here.]

### **Costs**

13 I am not seeking costs.

[or]

[If these paragraphs are used, renumber them and the paragraphs that follow in sequence.]

13a I am seeking costs in the amount of [\$ ] .

13b [State the basis for the claim for costs and the amount.]

**Request for relief**

- 14 I request that this Honourable Court grant my application for a divorce order. I also request that the terms and conditions of [our written agreement dated , 20 /court order dated , 20 /written agreement dated , 20 and court order dated , 20 ] be incorporated in and form part of the corollary relief order.
- 15 [Set out any special relief or unusual circumstances affecting relief, if applicable, and renumber any remaining paragraphs as required.]

**Change of name** [may delete this section if it does not apply]

- 16 I am seeking an order changing my name from [present full name] to [full name, including middle names(s)] .
- 17 Prior to my marriage to the respondent, my name was [pre-marriage name] . My name at birth was [name] and I was born on [date] .  
[Provide particulars, for example, full name on birth certificate, including middle name(s).]

[Sworn to/Affirmed] before me )  
on, [date] , 20 )  
at [City/Town] , Nova Scotia )  
)  
)  
)

\_\_\_\_\_  
Signature of Authority  
Print name:  
Official capacity:

\_\_\_\_\_  
Signature of  
Print name: